

matter is continued to **Monday, August 3, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Motion to Enforce Settlement Agreement and all remaining Petitions and Motions. A copy of the settlement agreement from October of 2025 is required to be filed. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date on all parties entitled to notice. **No appearance is necessary on today's calendar.**

IN RE: LANA FRYE AND ROBERT KEOUGH FRYE REVOCABLE TRUST
CASE NUMBER: 26PB-0033350

This matter is on calendar for further proceedings on a Petition for Order to Confirm Validity of Trust, Confirm Trustee, and Confirm Assets to Revocable Trust. An amended Petition has been filed which sufficiently addresses the issues raised on June 1, 2026. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Court finds that Petitioner has established that the real property at issue is held by the Trust. The Petition is **GRANTED**. A proposed Order has not been submitted in compliance with Local Rule 15.06. Petitioner shall prepare the order. The clerk is instructed to close the file upon the processing of the order. **No appearance is necessary on today's calendar.**

IN RE: MARGIE ROSE JOSE FAMILY TRUST
CASE NUMBER: 26PB-0033361

This matter is on calendar for further proceedings on a Petition to Compel Accounting, Dispute Care Determination, and Right to Stay. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition has not been signed or verified, as required by Probate Code Section 1021 and CRC 7.103.

The amended Petition filed on June 22, 2026, provides a copy of the Trust. The trust provides that David Guadagni shall share fifty-percent of the residue of the trust assets "with his sister and brother if they become active in the settlor's care during her life or, at a minimum, call the settlor at least one time a week." Petitioner disputes Mr. Guadagni's care determination; however, the trust explicitly vests Mr. Guadagni with sole discretion to determine whether the settlor's other children became active in her life. It appears based on the allegations in the Petition that Mr. Guadagni determined that Petitioner was not active in settlor's care during her life, therefore Petitioner is not a beneficiary of the trust.

Additionally, Petitioner alleges she was granted a life estate in real property owned by the trust, that the real property was burned in the Carr Fire, and the trust received insurance money related to the destruction of the home. Petitioner currently lives in a home that was purchased with that insurance money and the trustee of the trust is requesting Petitioner vacate the real property. Consequently, Petitioner requests an accounting of the insurance money. Civil Code Section 1624 requires that any interest in real property be evidenced by a writing. No writing has been produced as evidence that Petitioner was granted a life estate in the real property.

The Petition is **DENIED** without prejudice. A proposed Order has not been submitted in compliance with Local Rule 15.06. Petitioner shall prepare the Order. The clerk is instructed to close the file upon processing of the order. **No appearance is necessary on today's calendar.**

IN RE: ROBERTA V. HARRISON REVOCABLE LIVING TRUST
CASE NUMBER: 25PB-0033130

This matter is on calendar for hearing on a Motion to Correct Attorney Error in Dismissal. The motion seeks to strike the dismissal entered on May 26, 2026, so that a new dismissal may be entered without prejudice so the court may retain jurisdiction to oversee and, if needed, enforce the parties' settlement. The Court finds the matter has been properly noticed, despite that a Notice of Hearing has not been filed and served. No objections have been raised. The motion is **GRANTED**. A proposed Order has been submitted and will be executed. Upon processing of the Order, the clerk is directed to strike the Request for Dismissal filed on May 26, 2026. A new proposed Request for Dismissal has been submitted and will be filed. **No appearance is necessary on today's calendar.**